

<i>Abstract.</i>					£	s.	d.
Value of heritable estate	-	-	-	-			
Value of moveable estate	-	-	-	-			
Total	-	-	-	-			
Deduct debts, &c.	-	-	-	-			
Net value of estate	-	-	-	-			

[To be signed by pursuer or her agent.]

CHAPTER 10.

An Act to repeal the Parliamentary Elections (Soldiers) Act, 1847. [16th April 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The Parliamentary Elections (Soldiers) Act, 1847 (which provides for the regulation of the stations of soldiers during parliamentary elections), is hereby repealed, and this repeal shall be deemed to have had effect as from the tenth day of December nineteen hundred and eighteen. Repeal of 10 & 11 Vict. c. 21.

2. This Act may be cited as the Parliamentary Elections (Soldiers) Act, 1919. Short title.

CHAPTER 11.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army. [16th April 1919.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law:

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of two million six hundred and fifty thousand, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but

exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

44 & 45 Vict.
c. 58.

And whereas the Army Act will expire in the year one thousand nine hundred and nineteen on the following days :—

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Army (Annual) Act, 1919.

Army Act to
be in force for
specified times.

2.—(1) The Army Act shall be and remain in force during the periods hereinafter mentioned, and no longer,* unless otherwise provided by Parliament (that is to say) :—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and nineteen to the thirtieth day of April one thousand nine hundred and twenty, both inclusive ; and

(b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and nineteen to the thirty-first day of July one thousand nine hundred and twenty, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF THE ARMY ACT.

4. In section forty-two of the Army Act (which relates to the mode of complaint by officers), after the words "examine into such complaint, and" there shall be inserted the words ("if so required by the officer"). Amendment of s. 42 of Army Act.

5. In subsection (1) of section forty-six of the Army Act (which relates to the proceedings upon investigation of a charge), after the words "for bringing the offender to court-martial," there shall be inserted the words "or, in the case of an officer below the rank of field officer, may refer the case to be dealt with summarily by a general officer under the provisions of this Act." Amendment of s. 46 of Army Act.

6. After section forty-six of the Army Act the following section shall be inserted:— Power to deal summarily with charges against officers.

"46A.—(1) Any of the following authorities shall have power to deal summarily with a charge against an officer below the rank of field officer referred for that purpose, or for trial by court-martial, under the foregoing section of this Act, that is to say, any general officer authorised to convene a general court-martial, and also, on active service, the General Officer Commanding-in-Chief in the Field, and any officer (not under the rank of major-general) appointed for the purpose by him, or by the Army Council.

(2) The authority having power to deal summarily with the case may, with or without hearing the evidence, dismiss the charge, if he in his discretion thinks that it ought not to be proceeded with, or, where he thinks the charge ought to be proceeded with, take steps for bringing the offender to a court-martial, or may, after hearing the evidence, deal with the

case summarily by awarding one or more of the following punishments:—

- (a) Forfeiture of seniority of rank either in the army or in the corps to which the offender belongs, or in both.
- (b) Severe reprimand or reprimand.

(3) Where the authority having power to deal summarily with the case considers that he may so deal with the case, he shall, unless he awards a severe reprimand, or a reprimand, in every case ask the officer charged whether he desires to be dealt with summarily or to be tried by a court-martial, and if the officer elects to be tried by a court-martial, take steps for bringing him to trial by a court-martial, but otherwise shall proceed to deal with the case summarily.

(4) In every case where an authority has power to dispose of a case summarily, and decides so to do, the accused officer may demand that the evidence against him should be taken on oath, and the same oath or solemn declaration as that required to be taken by witnesses before a court-martial shall be administered to each witness in such case.

(5) An offender shall not be liable to be tried by court-martial for any offence which has been dealt with summarily under this section, and shall not be liable to be punished by a general officer under this section for any offence of which he has been acquitted or convicted by a competent civil court or by a court-martial."

**Amendment of
s. 114 of Army
Act with
respect to lists
of horses.**

7. Section one hundred and fourteen of the Army Act (which provides for the preparation of an annual list of persons liable to supply carriages and animals) shall be amended as follows:—

In subsection (1A) the second paragraph shall be omitted.

After subsection (1A) the following subsection shall be inserted:—

"(1B) With respect to horses, the following provisions shall have effect—

- (i) it shall be the duty of the owner of any horse, and the occupier of any premises where horses are kept, to furnish, if so required, to the authority hereinafter mentioned before such date in each year as may be prescribed a return specifying the number of horses belonging to him or kept on his premises, and giving with respect to every horse such details as may be so prescribed; he shall also afford all reasonable facilities for enabling any horse belonging to him or kept on his premises to be inspected and examined as and when required by the said authority; if any person fails to comply with any of the requirements of this paragraph, he shall be liable on summary conviction for each offence to a fine not exceeding fifty pounds;

- (ii) the Army Council may, for the purposes of this subsection, make regulations prescribing anything which under this subsection is to be prescribed, and prescribing the forms to be used, and generally for the purpose of carrying this subsection into effect ;
- (iii) regulations made by the Army Council may provide for excepting from the provisions of this subsection horses of any class or description specified in the regulations."

After subsection (3) the following subsection shall be inserted :—

"(3A) If any officer is obstructed in the exercise of his powers under this section, a justice of the peace may, if satisfied by information on oath that the officer has been so obstructed, issue a search warrant authorising the constable named therein, accompanied by the officer, to enter the premises in respect of which the obstruction took place at any time between six o'clock in the morning and nine o'clock in the evening, and to inspect any carriages or animals that may be found therein."

For subsection (4) there shall be substituted the following subsection :—

"(4) The authority for the purposes of this section shall be the Army Council or any authority or persons to whom the Army Council may delegate their powers under this section."

8. At the end of section one hundred and fifteen of the Army Act (which provides for the supply of carriages and animals in case of emergency) the following subsection shall be inserted :—

Amendment of
s. 115 of Army
Act.

"(10) A requisition of emergency issued under this section may prohibit, during such period as may be specified in the requisition, the sale and purchase of horses to or by any person other than a person appointed by the Army Council to purchase horses ; and if any person sells or purchases or is concerned in the sale or purchase of a horse in contravention of such prohibition, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such imprisonment and fine."

9. The following provision shall be added at the end of subsection (2) of section one hundred and thirty-one of the Army Act (which provides for arrangements as to prisons with colonial governments)—

Amendment of
s. 131 of Army
Act.

• "Notwithstanding anything in this Act, a Secretary of State may arrange with the Governor of a Colony that any person or class of persons enlisted in the Colony shall, if sentenced under this Act to penal servitude, be transferred to or kept in the

Colony and there undergo his sentence in any prison or place in which persons sentenced to penal servitude by a civil court in the Colony can for the time being be confined or, if there be no such prison or place, in an authorised prison as defined by section sixty-five of this Act."

Retrospective effect of increased rates of deduction under s. 145 of the Army Act.

10.—(1) Where an order had, before the commencement of the Army (Annual) Act, 1918, been made under section one hundred and forty-five of the Army Act authorising deductions from pay, a further order may be made increasing the amount of the deduction to be made after the commencement of this Act under the former order up to the limit authorised by section ten of the Army (Annual) Act, 1918.

8 Geo. 5. c. 6.

(2) This section shall, notwithstanding anything in section fourteen of the Army (Annual) Act, 1904, come into operation, both within the British Islands and elsewhere, on the passing of this Act.

4 Edw. 7. c. 5.

Amendment of s. 153 of Army Act.

11. Section one hundred and fifty-three of the Army Act (which imposes a punishment for inducing soldiers to desert) shall be amended as follows:—

(a) For the words "any soldier," "a soldier," and "such soldier," wherever those words occur, there shall be substituted respectively the words "any officer or soldier," "an officer or soldier," and "such officer or soldier":

(b) After the word "desert," wherever that word occurs, there shall be inserted the words "or absent himself without leave," after the word "deserting" there shall be inserted the words "or absenting himself without leave," and after the word "deserter" there shall be inserted the words "or absentee without leave."

Amendment of s. 156 of Army Act.

12. Subsection (1) of section one hundred and fifty-six of the Army Act (which imposes penalties in respect of the sale of military necessities) shall be amended as follows:—

(1) For the words "an officer or soldier or any person acting on his behalf" in paragraph (a), and for the words "an officer or soldier" in paragraphs (b) and (c) there shall be substituted the words "any person":

(2) After the words "or clothing" there shall be inserted the words "issued for the use of officers or soldiers":

(3) For the words "or of the person with whom he dealt" "being or acting for a soldier, or that the same" "was sold by order of the Army Council or some" "competent military authority," there shall be substituted the words "or that the same was sold" "by order or with the consent of the Army Council," "or some competent military authority, or that the" "same was the personal property of an officer who

“ had retired or ceased to be an officer, or of a soldier
 “ who had been discharged, or of the legal personal
 “ representatives of an officer or soldier who had
 “ died.”

In subsection (2) of section one hundred and fifty-six of the Army Act, for the words “to a penalty not exceeding five pounds” there shall be substituted the words “to the same penalties as are prescribed in the case of a contravention of the last preceding subsection.”

13. After section one hundred and fifty-six of the Army Act, the following section shall be inserted :—

“ 156A. If—

- (a) any unauthorised person uses or wears any military decoration or medal, or medal ribbon, or any badge, wound stripe, or emblem supplied or authorised by the Army Council, or any decoration, medal, or medal ribbon, badge, wound stripe or emblem so nearly resembling the same as to be calculated to deceive ; or
- (b) any person falsely represents himself to be a person who is or has been entitled to use or wear any such decoration, medal, or medal ribbon, badge, wound stripe, or emblem as aforesaid ; or
- (c) any person without lawful authority or excuse supplies or offers to supply any such decoration or medal as aforesaid to any person not authorised to use or wear the same ;

Unauthorised
use of decorations, &c.

such person shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months :

Provided that nothing in this section shall be deemed to prohibit the wearing or supply of ordinary regimental badges or any brooch or ornament representing the same.”

14. In paragraph (j) of subsection (1) of section one hundred and sixty-three of the Army Act the words “or by whom the arrest” and the words “or arrest” shall be omitted.

Amendment of
s. 163 of Army
Act.

15. The following paragraph shall be substituted for paragraph (3A) of section one hundred and seventy-five of the Army Act.

“(3A) Officers of the territorial force, other than members of the permanent staff, if on the active list at all times, and if on the territorial force reserve, at any time when they are doing duty with any body of troops for the time being subject to military law or are ordered on any duty or service for which as such reserve officers they are liable.”

Amendment of
s. 175 of Army
Act.

Amendment of
s. 179A of Army
Act.

16.—(1) Section one hundred and seventy-nine A of the Army Act (which makes provision as to officers or airmen of the Air Force attached to or seconded for service with the regular forces) shall be amended as follows:—

Paragraphs (a) and (b) of subsection (2) shall be omitted.

The following paragraph shall be substituted for paragraph (c) of subsection (2):—

“(c) the finding and sentence of any general court-martial for the trial of any such officer or airman may be confirmed by His Majesty, or by an officer authorised to confirm the findings and sentences of general courts-martial under the Air Force Act, and not otherwise, except that when such officer or airman while subject to this Act is serving beyond the seas with a military force, and in the opinion of the general or other officer commanding that force (such opinion to be stated in the confirmation and to be conclusive) there is not present any officer authorised to confirm the findings and sentences of general courts-martial under the Air Force Act, the findings and sentences may be confirmed by a general or other officer authorised to confirm findings and sentences of general courts-martial under this Act.”

After paragraph (f) the following paragraph shall be inserted:—

“(g) The power of a court-martial to inflict on an officer the punishment of forfeiture of seniority of rank shall include power to inflict a punishment of forfeiture of seniority of rank in the air force or any corps or unit thereof or both.”

At the end of the section the following new section shall be inserted:—

“179B. In the application of this Act to officers of His Majesty's naval forces who are subject to military law, the power of a court-martial to inflict the punishment of forfeiture of seniority of rank shall include power to inflict the punishment of forfeiture of seniority of rank in the navy.”

(2) The finding and sentence of any court-martial convened before the commencement of this Act, under section one hundred and seventy-nine A of the Army Act, may, after that date, be confirmed in the manner provided for by this Act.

Amendment of
s. 180 of Army
Act.

17. In paragraph (e) of subsection (2) of section one hundred and eighty of the Army Act (which relates to the application of the Army Act to His Majesty's Indian Forces) after the words “court martial” there shall be inserted the words “or where the case is dealt with summarily under the provisions of this Act, the authority having power so to deal with the case.”

18.—(1) In paragraph (4) of section one hundred and ninety of the Army Act (being the definition of “officer”) after the words “or part thereof” where they occur for the third time, there shall be inserted the following words :—

Amendment of
s. 190 of Army
Act.

“it also includes any officer of His Majesty’s naval or air forces who is for the time being subject to military law.”

(2) This section shall, notwithstanding anything in section fourteen of the Army Annual Act, 1904, come into operation, both within the British Islands and elsewhere, on the passing of this Act.

SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sixpence each.
Dinner as so specified - - - - -	One shilling and twopence each.
Supper as so specified - - - - -	Fourpence each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Two shillings and fourpence per day.
Stable room without forage - - - -	Sixpence per day.
Lodging and attendance for officer - - -	Two shillings per night.

Note.—An officer shall pay for his food.